

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No. 11663 of 2019

IN THE MATTER OF

St. Peter's School of London Limited.

.....Petitioner

-Versus-

Rajdhani Unnyan Kartipakkhya (RAJUK) and
others.

.....Respondents.

Mr. Md. Faizullah, Advocate

..... For the petitioner

Mr. Amit Das Gupta, D. A.G

.....for the respondents

Heard on: 28.06.2021 and

Judgment on: 30.06.2021.

Present:

Mr. Justice Mamnoon Rahman

And

Mr. Justice Khandaker Diliruzzaman

Mamnoon Rahman, J:

In an application under Article 102 of the Constitution of the People's Republic of Bangladesh, Rule Nisi was issued on 11.11.2019 calling upon the respondents to show cause as to why inaction of the respondents in accepting the payment of the installment against allotment of institutional Plot under ID No. INS-16B-2-2 at Extended 3rd project of Uttara of the respondent No. 1 and to execute lease deed

in respect of the said plot in favour of the petitioner should not be declared to have been done without lawful authority and is of no legal effect and why a direction upon the respondents to allow the petitioner to deposit the installment for institutional Plot under ID No. INS-16B-2-2 at Extended 3rd project of Uttara of the respondent No. 1 allotted in favour of the petitioner as per the allotment letter No. রাজউক/এস্টেট ও ভূমি-২/২০১১ dated 03.09.2015 and to execute lease deed in respect of said plot in favour of the petitioner and to dispose of the letter dated 25.07.2019 submitted by the petitioner should not be given and/or pass such other or further order or orders as to this Court may seem fit and proper.

It further transpires that on an application for injunction this court vide order dated 04.02.2022 directed the parties to maintain *status-quo* in respect of possession and position of the plot in question.

The short facts relevant for the disposal of this rule are that the petitioner applied to the respondent No. 1 RAJUK, to obtain a plot in the name of the petitioner which is an educational institution. Accordingly, the respondent No. 3 vide its letter being reference No. রাজউক/এস্টেট ও ভূমি-২/২০১১ dated 03.09.2015 allotted a plot measuring an area of 1.66 Bighas under the name of “Extended 3rd project of Uttara” at 16B Sector, Road No. 2 in favour of the petitioner having Plot ID No. INS-16B-2-2, category: Educational Institute. The price of the said land was fixed at Taka 30,00,000/- per katha and the total price is Taka 9,96,00,000/- and the said money to be paid as per instructions stated in

the said letter of the RAJUK. The installments instructions as per letter dated 03.09.2015 runs as follows:

‘The security money to be adjusted with the price and the first installment of Taka 3,73,40,000/- be paid by 30.11.2015, 2nd installment of Taka 3,70,51,100/- to be paid by 30.11.2016 and last 3rd installment of Taka 3,34,65,600/- to be paid before the declaration of RAJUK as to the transfer of the said plot.’

Subsequently, the petitioner vide letter dated 29.11.2015 requested the respondent to extend time for one and half month as evident Annexure- C to the writ petition. Subsequently, as per instructions of RAJUK, the petitioner on 25.05.2017 and 16.08.2017 vide pay order Nos. 4001593 and 4149903 of United Commercial Bank Limited, Banani Branch, paid an amount of Taka 3,73,40,000.00 and Taka 77,91,614.00 respectively to the respondent No. 1 as first installment which were duly accepted by the respondent No. 1, RAJUK. Therefore, when the petitioner approached the bank for deposit of the next installment the bank refused to accept the same. Subsequently, the petitioner on 25.07.2019 requested to the respondent No. 1 to take installment and handover the plot as well as execute lease deed.

The further case of the petitioner is that the petitioner school is an English medium primary and secondary school maintaining a linked

with the educational institutions of United Kingdom (UK) and offering quality education and intends to extend its operation for the greater benefit of children. The petitioner school is being renowned in its area and many students are admitted to the said school and their future is connected with the sustainability of the petitioner school which is largely dependent on usability of the land in question. The further case of the petitioner is that the petitioner deposited installments which was duly receipt by the respondent but thereafter they are not accepting any installment nor extending time nor executing agreement lease deed. Because of the inaction of the respondent the petitioner was constant to file this writ petition and obtained the present Rule.

We have heard the learned Advocate for the petitioner as well as the respondent, we have perused the writ petition, application for injunction, the paper and documents annexure herewith.

On perusal of the same, it transpires that admittedly the petitioner applied for plot and the respondent RAJUK vide letter dated 03.09.2019 allotted a plot in favour of the school in question. In the said allotment letter the respondent directed the petitioner to deposit the premium by installments. It further transpires that the petitioner on 29.11.2015 (as evident in annexure- C) applied for extension. Also it appears from Annexure- D and D-1 that the petitioner deposited an amount of Taka 3,73,40,000/- and Taka 77,91,614.00/- respectively by two Pay Orders which were duly accepted by Rajdhani Unnyan Kartipakkhya (RAJUK). It further transpires that subsequently, the

bank refused to receive the remaining installment on the plea of cancellation of the plot the petitioner though there was no such communication received by the petitioner in any manner. Thereafter the petitioner made representation as evident Annexure- F on 25.07.2019 to the respondents but of no use.

Considering the fact and circumstances, we are of the view that since the petitioner obtained due allotment letter and deposited substantial amount as premium which was duly accepted by the respondent, justice would be done if a direction given upon the respondent to dispose of the application dated 25.07.2019 (as evident in Annexure- F) strictly in accordance with the relevant law and rules. Accordingly the respondents are directed to dispose of the representation made by the petitioner within 30(thirty) days from the date of receipt of this order by applying judicial mind and giving the petitioner all opportunity of being heard. However, the interim order passed by this Court dated 11.11.2010 shall continue till that period.

With the observation the Rule is disposed of.

Khandaker Diliruzzaman, J:

I agree.